

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4   COMMITTEE SUBSTITUTE  
5   FOR ENGROSSED  
6   SENATE BILL NO. 1319

By: Frix of the Senate

and

Sneed, **Boles**, and **Bashore**  
of the House

11                               COMMITTEE SUBSTITUTE

12           An Act relating to the Corporation Commission;  
13           establishing program to address certain emergencies;  
14           requiring an application; allowing for the purchase  
15           of contaminated property; allowing for remediation;  
16           requiring the return of certain funds; authorizing  
17           the promulgation of rules; creating the Remediation  
18           Assistance Revolving Fund; establishing revolving  
19           fund characteristics; declaring the funds  
20           appropriated; providing for codification; and  
21           declaring an emergency.

20   BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21           SECTION 1.       NEW LAW       A new section of law to be codified  
22           in the Oklahoma Statutes as Section 180.14 of Title 17, unless there  
23           is created a duplication in numbering, reads as follows:

1       A. The Corporation Commission shall establish a process to  
2 alleviate new and ongoing serious environmental emergencies through  
3 which a homeowner whose residence has become contaminated by a  
4 substance within the Corporation Commission's jurisdiction,  
5 including, but not limited to, brine or oil, may apply for  
6 remediation assistance.

7       B. 1. To request the use of funds from the Remediation  
8 Assistance Revolving Fund created in Section 2 of this act, the  
9 homeowner shall file an application to be considered by the  
10 Corporation Commission. The Corporation Commission may hear the  
11 application with or without notice.

12       2. After considering the evidence presented, the Corporation  
13 Commission shall rule on the application and determine the amount of  
14 remediation assistance necessary to remediate and abate the  
15 environmental emergency.

16       3. The amount of remediation assistance may include the cost to  
17 stop the substance from continuing the contamination, the cost of  
18 removing and cleaning up the substance, and the cost of purchasing  
19 the residence and property at fair market value. The Remediation  
20 Assistance Revolving Fund shall not be used to pay for any damages.

21       4. Prior to any expenditure from the Remediation Assistance  
22 Revolving Fund, the Corporation Commission shall comply with the  
23 requirements set forth in Section 85.41A of Title 74 of the Oklahoma  
24 Statutes.

1        5. If the Corporation Commission or other agency identified in  
2 subsection C of this section determines that purchasing the  
3 homeowner's property is the best course of action, title to the  
4 property may be acquired and held by the city or county in which the  
5 property is located. If the city or county chooses to acquire the  
6 property, the city or county shall determine the fair market value  
7 of the property. If removal of the residence is necessary, the city  
8 or county shall facilitate removal of the residence. Once the  
9 residence is removed and the presence of a well is confirmed, the  
10 Corporation Commission shall remediate and abate the environmental  
11 emergency. After the property is remediated, the city or county  
12 shall sell the property and return all proceeds to the Remediation  
13 Assistance Revolving Fund.

14        6. A homeowner's insurance claim shall not be required prior to  
15 receiving remediation assistance provided pursuant to this  
16 subsection. However, the homeowner shall in good faith pursue all  
17 available homeowner's insurance claims and damage claims. All  
18 proceeds received by the homeowner not related to damaged personal  
19 property shall be reimbursed to the Remediation Assistance Revolving  
20 Fund.

21        C. If, at any time, the environmental emergency is determined  
22 by the Corporation Commission to not be within the Corporation  
23 Commission's jurisdiction, or it is determined to be a naturally  
24 occurring breakout, the matter shall be referred to the Department

1 of Environmental Quality to remediate and abate the environmental  
2 emergency only if sufficient funds exist in the Remediation  
3 Assistance Revolving Fund to perform the remediation work or  
4 abatement.

5 D. The Corporation Commission shall promulgate rules to  
6 effectuate the provisions of this section.

7 SECTION 2. NEW LAW A new section of law to be codified  
8 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there  
9 is created a duplication in numbering, reads as follows:

10 There is hereby created in the State Treasury a revolving fund  
11 for the Corporation Commission to be designated the "Remediation  
12 Assistance Revolving Fund". The fund shall be a continuing fund,  
13 not subject to fiscal year limitations, and shall consist of all  
14 monies received by the Corporation Commission from any public or  
15 private donations, contributions, and gifts received for the benefit  
16 of the fund and any amounts appropriated by the Legislature  
17 designated for deposit in the fund. All monies accruing to the  
18 credit of the fund are hereby appropriated and may be budgeted and  
19 expended by the Corporation Commission or the Department of  
20 Environmental Quality for the purpose of providing remediation  
21 assistance as provided for in Section 1 of this act. Expenditures  
22 from the fund shall be made upon warrants issued by the State  
23 Treasurer against claims filed as prescribed by law with the  
24

1 Director of the Office of Management and Enterprise Services for  
2 approval and payment.

3 SECTION 3. It being immediately necessary for the preservation  
4 of the public peace, health or safety, an emergency is hereby  
5 declared to exist, by reason whereof this act shall take effect and  
6 be in full force from and after its passage and approval.

7

8 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated  
9 04/15/2026 - DO PASS, As Amended and Coauthored.

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24